

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO  
Senior District Judge Richard P. Matsch**

Date: August 4, 2014  
Courtroom Deputy: J. Chris Smith  
FTR Technician: Kathy Terasaki

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Civil Action No. 11-cv-00767-RPM

DR. GEORGE FREY, M.D., a Colorado Citizen,  
  
Plaintiff,

Stanley M. Gibson  
Ian R. Walsworth  
David Kellis

v.

WARSAW ORTHOPEDIC, INC., an Indiana corporation, and  
MEDTRONIC SOFAMOR DANEK USA, INC., a Tennessee Corporation, Nimalka R. Wickramasekera  
Defendants. Sharre S. Lotofollahi

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**COURTROOM MINUTES**

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**Trial to Jury Day One**

**8:16 a.m. Court in session.**

Plaintiff George Frey and defendants' client representative Anthony Melkint are present.

Court's preliminary remarks.

Discussion regarding statement of the case.

Plaintiff's objection to defendants' demonstrative exhibit.

Argument by Mr. Gibson.

Argument by Ms. Lotofollahi.

**Demonstrative Exhibits objected to may not be used during openings.**

Court states its trial practices and procedures.

8:23 a.m. Jurors present.

Court's preliminary remarks to jurors.

Court reads Statement of the Case to Jurors.

Court's procedural statements to jurors.

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8:31 a.m. All jurors sworn for voir dire.

Eighteen jurors called to the jury box.

8:40 a.m. Court voir dres jurors.

Court excuses for cause jurors:

100258750  
100278947  
100248832  
100280880

10:35 a.m. to 10:37 a.m. Bench conference: counsel pass jurors for cause.

Plaintiff's challenges:

100250598  
100257929  
100268900

Defendants' challenges:

100279936  
100255264  
100259957

Twelve jurors selected to try the case:

100246556  
100276497  
100254260  
100252601  
100279056  
**100270016** (excused for cause during recess).  
100250440  
100262356  
100246666  
100263110  
100245034  
100266221

Court instructs jurors.  
Jurors excused.

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**10:45 a.m. Court in recess.**

**Conference between Court, Mr. Gibson , Mr. Dauchot and juror 100270016 regarding jury service.  
ORDERED: Juror 100270016 excused for cause.**

**11:15 a.m. Court in session.**

Jurors present.

11 jurors sworn to try the case.  
Court instructs jurors.

11:21 a.m. Plaintiff's opening statement by Mr. Gibson.

Court instructs jurors.  
Jurors excused.

Court's statement regarding its conference with counsel and juror 100270016 during last recess.  
**Counsel confirm oral stipulation regarding excusing juror 100270016 and proceeding with a jury of 11.**

**12:33 p.m. Court in recess.  
2:02 p.m. Court in session.**

Jurors present.

2:03 p.m. Defendants' opening statement by Mr. Dauchot.

Court instructs jurors.  
Jurors excused.

**3:52 p.m. Court in recess.  
4:05 p.m. Court in session.**

Jurors present.

4:06 p.m. Plaintiff George Frey, M.D., sworn.

Direct examination of Dr. Frey by Mr. Gibson.

Plaintiff's Alif slide published.

Court instructs jurors.  
Jurors excused until 9:00 a.m. August 5, 2014.

**4:33 p.m. Court in recess.** Trial continued. Total time: 6 hrs. 48 min.

**Clerk's Note:** Combined witness list and redacted strike sheet attached.